LAZARUS MUCHENJE

versus

NETONE CELLULAR (PRIVATE) LIMITED

HIGH COURT OF ZIMBABWE
DEMBURE J
HARARE: 27 October 2025 & 9 February 2026

Exception

B Diza, for the excipient
V Mhungu, for the plaintiff

DEMBURE J: The court, after hearing submissions from the parties' legal practitioners on 27 October 2025, handed down an *ex tempore* judgment, the operative part of which was that:

"1. The exception is upheld with costs."

The excipient's legal practitioners have now requested the written reasons for the court's decision. These are they.

Before me is an exception to the summons filed in terms of r 42(1)(b) of the High Court Rules, 2021 (*"the Rules"*). The ground for the exception was that the summons and the particulars of claim were incurably bad and defective in that they did not comply with r 36(1)(d), more particularly in that: the particulars of claim did not motivate the monetary claim for *contumelia*; the nature and extent of the plaintiff's legal fees are not specified to justify his cause; the particulars of claim did not motivate the plaintiff's claim for loss of earnings and that the summons did not disclose a competent cause of action for malicious prosecution. The prayer was that the plaintiff's summons and particulars of claim be dismissed with costs.

FACTUAL BACKGROUND

It is common cause that on 26 July 2025, the plaintiff instituted action proceedings against the excipient, claiming the following relief:

"1. Payment of the sum of USD$1 000 000.00 (One Million United States Dollars) or its equivalent in Zimbabwean Dollars at the applicable interbank rate at the date of payment,

being damages for malicious prosecution suffered by the Plaintiff at the instance of the Defendant computed as follows:

a. *Contumelia*…….USD$ 30 000.00
b. Legal Costs……USD$500 000.00
c. Loss of earnings……USD$470 000.00
2. Costs of suit on a higher scale."

Following the service of summons and declaration, the excipient (defendant) entered an appearance to defend on 8 July 2025. On 16 July 2025, it issued a notice through a letter of complaint to the plaintiff to amend its pleadings in terms of r 42(3) of the rules. It raised a complaint that the summons failed to comply with r 36(1)(d), which mandates the inclusion of "a clear and concise statement of the material facts relied upon by the plaintiff in support of his or her claim, sufficient to enable the defendant to plead thereto." The specific particulars as to why the summons was excipiable were fully set out in the said letter. The letter, as required by the rules, gave the plaintiff twelve (12) days to remove the cause of their complaint by amending the summons. Subsequently, the exception was filed on 29 July 2025.

In his exception, the excipient averred that the plaintiff's summons and particulars of claim were bad at law and incurably defective as the summons did not comply with the requirements of r 36(1)(d) of the rules, more specifically in that:

"a) **The particulars of the claim do not motivate the monetary claim for *contumelia***.
The Summons fails to particularize the alleged personal injury and provide a basis and breakdown for the $30,000.00 claim for *contumelia*.

b) **The nature and extent of the Plaintiff's Legal Fees are not specified to justify his cause**.
The Plaintiff's claim for legal fees lacks particularity, hindering the Defendant's ability to assess their reasonableness and recoverability. Specifics regarding attendances and applicable tariffs are requisite for the assessment of damages.

c) **The particulars of the claim do not motivate the Plaintiff's claim for loss of earnings**.
The Particulars of the Claim fail to adequately particularize the asserted loss of earnings claim for USD$470,000.00. The summons merely posits an unsubstantiated loss of income.

d) **The Summons does not disclose a competent cause of action for a claim of Malicious Prosecution**.
The Particulars of Claim, as currently drafted, fail to competently establish the legal basis for instituting proceedings for malicious prosecution. To succeed in an action of this nature, four fundamental elements must be met; these have not been demonstrably discharged in the Plaintiff's Declaration."

The defendant's exception was filed together with the heads of argument motivating the grounds for the exception as required by the rules.

It was not in dispute that the plaintiff, upon being served with the exception, proceeded to file his heads of argument on 13 August 2025. Even though the plaintiff was legally represented, he did not file a replication, which, in terms of the rules, is required to be filed together with the heads of argument within ten (10) days of receipt of the defendant's exception and the accompanying heads of argument.

THE PRELIMINARY LEGAL ISSUE

At the hearing, I raised a point of law which had exercised the court's mind. The issue was whether the plaintiff's papers were properly before the court, given that the plaintiff did not file a replication together with his heads of argument in terms of r 42(9). I asked the parties to address me on the validity of the plaintiff's papers before me and the effect of the non-compliance. It is trite that a court is at liberty to raise any legal point that exercises its mind, which was not canvassed in the pleadings. However, once it has raised the point, it is obliged to hear submissions from the parties on the point before rendering its determination. It would, therefore, constitute a serious irregularity for the court to proceed to pronounce its decision on the point without hearing the parties first. This legal position was enunciated in *Nzara & Ors* v *Kashumba N.O. & Ors* SC 18/18 at pp 11-12 where UCHENA JA said:

> "The function of a court is to determine disputes placed before it by the parties. It cannot go on a frolic of its own. Where a point of law or a factual issue exercises the court's mind but has not been raised by the parties or addressed by them either in their pleadings in evidence or in submissions from the bar, the court is at liberty to put the question to the parties and ask them to make submissions on the matter.
> In *Welkom Municipality v Masureik and Herman T/A Lotus Corp* 1997 (3) SA 363 at 371 G-H MARAIS JA commenting on what the court should base its decision on said:
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> > "I should add that whether or not South Africa did or did not fail to do so is a question of fact upon which there was no evidence before the court *a quo*, and for reasons too obvious to require enumeration, the learned Judge was not entitled to enquire into this issue of fact after reserving judgment and without any reference to the parties, and then to decide it. Compare *Kauesa* v *Minister of Home Affairs and Others* 1996 (4) SA 965 (NmS) at 973H – 974C."
> >
> > In the Namibian case of *Kauesa v Minister of Home Affairs and Others* 1996 (4) 965 (NmS) DUMBUTSHENA AJA at pages 973H to 974C said:
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> > "The above matters are not crucial to the determination of this appeal. They are however, important because a frequent departure from counsel's, more correctly the litigant's case, may be wrongly interpreted by those who seek justice in our courts of law. It is the litigants who must be heard and not a judicial officer.
> >
> > It would be wrong for judicial officers to rely for their decisions on matters not put before them by litigants either in evidence or in oral or written submissions. Now and again, a

> Judge comes across a point not argued before him by counsel but which he thinks material to the resolution of the case. It is his duty in such a circumstance to inform counsel on both sides and invite them to submit arguments either for or against the Judge's point. It is undesirable for a court to deliver a judgment with a substantial portion containing issues never canvassed or relied on by counsel..."
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> Before leaving this aspect of the appeal I consider it appropriate to refer to what was said by BHAGWATI J (as he then was) in *M. M. Pathak v Union* (1978) 3 SCR 334 in relation to the practice of the Supreme Court of India:
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> "It is the settled practice of this Court to decide no more than what is absolutely necessary for the decision of a case".
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> In *Groenewald NO and Anor* v *Swanepoel* 2002 (6) SA 724 at 726 I to 727 A, PICKERING J commenting on what a judicial officer should do if he wants to take into consideration issues not covered in pleadings, evidence and submissions of the parties said:
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> "It was therefore the duty of the learned Judge to have informed plaintiff's counsel of the relevant point, more especially where that point was, in her view, conclusive of the matter, and to have invited him to submit argument to her. Had she done so counsel would no doubt have been in a position to address her concerns and the necessity for this appeal may well have been obviated…"

I respectfully agree with the views expressed in the authorities referred to above." (*my emphasis*)

Accordingly, the parties made their respective submissions on the point. Mr *Mhungu*, for the plaintiff, submitted that, from his reading of the rules, he was of the view that the replication was not necessary in the circumstances. He stated that was the reason why he did not file a replication. When the court queried whether it can be said that it was unnecessary to file a replication given the provisions of r 42(9), which obliges the plaintiff to file a replication and heads of argument within ten (10) of receipt of the exception and heads of argument, counsel argued that his understanding was that the exception had been filed to the summons and the summons was the plaintiff's position. It was the opinion of the defendant that the summons did not meet the standard required in terms of the rules. The heads of argument would then put what the law says before the court, and the court can then make a decision based on the opinion of the plaintiff and that of the defendant.

He referred me to r 40(2) and argued that it provides that no replication or subsequent pleading which is a mere joinder of issue or bare denial of allegations in the previous pleading, shall be necessary. I hasten to say that counsel was mixing up two issues here, as the provisions of r 40(2) relate to a replication to a plea on the merits and the provisions governing the filing of a replication and heads of argument to a special plea, exception or application to strike out are specifically set out in r 42(9). There is an exception procedure which is different to the procedure adopted in the action where the defendant pleads over to the merits. That special procedure for

an exception is what is provided for under r 42. The replication required under r 42(9) is, therefore, different from the replication in the general procedure when a plea on the merits is filed, in which case, under r 40(2), it would be optional.

Counsel argued that r 42(7) was also clear on the issue of a replication. He submitted that it is not mandatory to file a replication. In his view, a replication is filed only if it is necessary. The plaintiff would have simply filed a replication, which merely would be a joinder of issues or a bare denial. He also argued that the position of counsel is as contained in the heads of argument.

On the other hand, Mr *Diza,* for the excipient, submitted that he had intended to raise the point as a preliminary issue. He argued that the exception before the court was not opposed and should be granted as such. He submitted that the filing of a replication by the plaintiff in proceedings where an exception has been raised is a condition to oppose an exception. The replication is the pleading, and then the heads of argument come on board to extrapolate the legal issues raised in the replication. To the extent that no replication was filed on behalf of the plaintiff in the matter, the exception stands unopposed.

Counsel referred the court to the case of *Brooker* v *Mudhanda & Ors* SC 5/18. It was submitted that what applies to a special plea also applies to exceptions with equal force. In that judgment, the court said that in the event that a replication is not filed, then there is nothing that is there for the court to consider in response to the exception. And on that basis, it would be improper for a court to then dismiss the exception where no response to it has been offered. See also *Tobacco Research Board* v *Bergattal Tobacco Incorporated (Pvt) Ltd* HH 238/24, where the *Brooker* case was quoted with approval. Reference was also made to the case of *Kanjere* v *Old Mutual Life Assurance Company* Ltd HH 280/23, where the court also quoted with approval the *Brooker* case. Counsel submitted that there was, therefore, no opposition to the exception and that it should be upheld. He urged the court to grant the prayer that appears at p 14 of the record on the basis that the exception was not opposed.

In his reply, Mr *Mhungu* maintained that there was no need to reply to an exception. He referred the court to the case of *Muvirimi & Ors* v *Gramsway Investments* (Pvt) Ltd & Ors HH 343/18. Counsel argued that the reason for not filing a replication was that an exception does not bring in new facts. The position would only be different if it were a special plea. I had the

occasion to read the *Muvirimi* case (*supra*), but I found nothing in that case that can be taken as authority for counsel's argument. In any case, in that matter, the court decided the dispute applying the now-repealed rules of this court. In the old rules, there was no provision specifically requiring the other party to file a replication to an exception, a special plea or an application to strike out. However, r 42(9) was inserted into the rules of the court promulgated in 2021.

Counsel was adamant, however, that as far as the issue of an exception was concerned, there was no change from the old rules, especially if we have reference to r 40(2). He argued that a replication under this context was optional, not mandatory.

The applicable law on the filing of a replication to an exception is set out in r 42(9) of the rules, which states as follows:

> "(9) Where the other party is represented by a legal practitioner, he or she within ten days of receipt of the exception, special plea or application to strike out and the heads of argument accompanying it, file his or her replication and heads of argument and whereupon, the registrar shall give such party a set down date within a month from the date of filing." (*my emphasis*)

The provisions of r 42(9) are very clear that a replication and heads of argument are required to be filed, whether it is an exception, a special plea or an application to strike out. The replication must accompany the head of arguments, and the intention of the drafters is clear by the use of the word "and". It is trite that in interpreting statutes, the cardinal canon of interpretation is the literal rule that where words used are clear and unambiguous, they must be given their ordinary grammatical meaning unless to do so may lead to an absurdity or inconsistency with the rest of the instrument. See *Chihava & Ors* v *The Provincial Magistrate Francis Mapfumo NO & Anor* 2015 (2) ZLR 31 (CC) at pp 35H-37B where the Constitutional Court said:

> "The starting point in relation to the interpretation of statutes generally would be what is termed 'the golden rule ' of statutory interpretation. This rule is authoritatively stated thus in the case of *Coopers and Lybrand & Others v Bryant* 1995 (3) SA 761 (A) at 767: 'According to the "golden rule" of interpretation, the language in the document is to be given its grammatical and ordinary meaning, unless this would result in some absurdity, or some repugnancy or inconsistency with the rest of the instrument.'"

The word "and" when used in a statute is generally interpreted adopting the golden rule to have a conjunctive meaning, requiring all listed conditions, elements, or requirements to be satisfied simultaneously unless that contradicts the intention of the legislature. It contrasts with

"or," which is interpreted disjunctively. While commenting on the use of the word 'and' in the context of s 12B(3)(b) of the Labour Act [*Chapter 28:01*] the Supreme Court interpreted the word "and" to have a conjunctive meaning in *Magodora & Ors v Care International Zimbabwe* 2014 (1) ZLR 397 (S). At p 402E-G therein, PATEL JA (as he then was) said:

> "My reading of s 12B(3)(b) of the Labour Act does not give me any ground for departing from that decision. The plain meaning of that provision is that the employee on a contract of fixed duration must have had a legitimate expectation of being re-engaged upon its termination and that he was supplanted by another person who was engaged in his stead. These requirements are patently conjunctive and the mere existence of an expectation without the concomitant engagement of another employee does not suffice." (*my emphasis*)

The use of the word "and" was further held to be conjunctive and, therefore, would mean that all the requirements must be satisfied in *S* v *Mungoza* HMT 01/18 at p 6, where MWAYERA J (as she then was) stated as follows:

> "Worth noting is the wording of section 253 on the requirement of the defence of self-defence by the use of the word 'and.' It is apparent that the requirements are conjunctive and not disjunctive. Thus a person pleading self-defence ought to meet all the requirements in order for the defence of self-defence to be available as a complete defence, (underlining my emphasis). See *S* v *Mabvume* HH 39/16 and also *S v Muchairi* HB 12/13."

Accordingly, by the use of the word "and" in r 42(9), the drafters clearly intended that a replication must be filed together with the heads of argument for there to be compliance with the rules. In other words, it means all must be filed. It is clear that it does not matter whether one is responding to an exception, a special plea or an application to strike out. Once a litigant is legally represented, he would be required by r 42(9) to file a replication and heads of argument to an exception within ten days after service of the exception and the heads of argument. While it is accepted that an exception, as opposed to a special plea, does not raise new facts but appears *ex facie* the pleading to which the exception is taken, the requirement of filing a replication was introduced by the High Court Rules, 2021, in particular r 42(9). It must be complied with. The same legal position relating to a special plea enunciated in the *Brooker* case (*supra*) would now equally apply. In that case, at p 13, GOWORA JA (as she then was) said:

> "After being served with the special plea of prescription, the respondent should have replicated. The purpose of a replication is to inform the court and the defendant of the plaintiff's rebuttal to the special plea. The failure by the respondent to file a replication to the special plea means that

> there are no disputes for determination on the special plea. In the absence of such replication there would be no issue for determination by the court *a quo*."

The above law now reflects the legal position applicable to an exception under r 42(9). A replication and heads of argument must be filed where a party is represented by a legal practitioner and wishes to oppose an exception. The replication would accordingly constitute the pleading or the opposition itself, while the heads of argument would contain the submissions on the law. It is trite that one cannot plead in the heads of argument. Heads of argument are not pleadings. See *Brooker* (*supra*) at p 17, where the court said:

> "The respondent did not raise an objection to the special pleas, he filed heads of argument. The purpose of heads of argument is to expound on the law applicable to the facts placed before the court, and one cannot plead through written submissions." (*my emphasis*)

What this means is that an objection or opposition to an exception is raised through the replication required under r 42(9), while the written submissions would extrapolate the law relied upon for the opposition. In my view, the use of the word "and" means that both the replication and the heads of argument must be filed in response to an exception where a party is legally represented. Non-compliance would be fatal to the plaintiff's case. The failure by the plaintiff to file that replication together with his heads of argument meant that the heads of argument were fatally defective. They could not stand on their own. The absence of the replication also meant that the plaintiff was not objecting or opposing the exception, which opposition can only be pleaded through a replication. The argument, therefore, that the replication is unnecessary, in my view, was misplaced.

It is clear that the replication specifically required under the procedure in r 42 is completely different from the replication referred to under r 40. The replication under r 40 relates to a pleading filed in response to a plea on the merits under the general action procedure. Thus r 40(2) provides that:

> "*Replication and plea in reconvention*
> 40.(1) Within twelve days after service upon him or her of a plea and subject to subrule (2), the plaintiff shall where necessary file a reply thereto to be called the plaintiff's replication which shall comply with rule 37.
> (2) No replication or subsequent pleading which would be a mere joinder of issue or bare denial of allegations in the previous pleading shall be necessary and issue shall be deemed to be joined and pleadings closed in terms of rule 44."

Rule 40(2), referred to by Mr *Mhungu* to support his argument, as it does not at all speak to the procedure following the filing of an exception. In the context of the general action

procedure outside an exception or special plea procedure, indeed, a replication may not be necessary where it would simply be a joinder of issues or a bare denial of all allegations made in the plea on the merits. The provisions of r 40(2) do not apply to the special procedure to be adopted when an exception is filed.

Mr *Mhungu* also referred me to r 42(7) which states as follows:

> "(7) Wherever any exception is taken to any pleading or an application to strike out is made, until it has been determined, no plea, replication or other pleading shall be necessary except as provided for in subrule (8)."

Clearly, this provision does not assist the plaintiff's argument. The provision relates to the filing of a replication in the action generally. It is to the effect that until the exception has been determined, one need not file any other pleadings in the main action. The use of the words "except as provided in subrule (8)" seeks to show that the replication which follows under subrule (9) from the filing of an exception and the heads of argument is necessary. It is a mandatory requirement. It was not intended to be covered by the provision that a replication shall not be necessary under subrule (7).

As alluded to above, the current rules require that a replication be filed in response to an exception as it constitutes the pleading, which indicates the basis or grounds upon which the plaintiff opposes the exception, the special plea or application to strike out. The plaintiff failed to comply with the mandatory provisions of r 42(9) by failing to file a replication and heads of argument within the stipulated period. That renders the exception unopposed. The plaintiff's heads of argument, having been improperly filed, are invalid. They are accordingly struck out. I will proceed to determine the exception as unopposed.

THE EXCEPTION

Mr *Diza* submitted that, in light of the fact that there was no opposition to the exception the prayer that the summons and particulars of claim be dismissed with costs must be granted.

The bases upon which an exception is raised are provided under r 42(1)(b). The said Rule provides that:

> "(1) As an alternative to pleading to the merits, a party may within the period allowed for filing any subsequent pleading—
>
> (a) …;

> (b) except to the pleading or to single paragraphs thereof if they embody separate causes of action or defence as the case may be where the pleading is vague and embarrassing or lacks averments which are necessary to sustain an action or defence, as the case may be;"

It settled that an exception filed on the basis that the summons does not disclose a cause of action must demonstrate that the summons fails to set out the *facta probanda* – (the facts in dispute or the facts that have to be proved). See TJM Paterson, *Eckard's Principles of Civil Procedure in the Magistrates Court,* 5th ed (2012), p 152. The same position was stated in *Mphoko & Anor* v *Nanavac Investments (Pvt) Ltd & Ors* HB 209/22 at p 2, where the court stated that:

> "…An exception based on the lack of a cause of action in the plaintiff's claims must establish that there are no facts pleaded that can be sustained even if evidence is led."

Herbstein & Van Winsen, *The Civil Practice of the High Courts of South Africa*, 5th ed, Vol I, (2009) at pg. 638-639 further stated that summons must 'set out every fact (material fact) which it would be necessary for the plaintiff to prove, if traversed, in order to support his right to judgment of the court. It does not comprise every piece of evidence which is necessary to prove each fact, but every fact which is necessary to be proved.' This is also a requirement which every pleading must conform to in terms of r 36(1)(d).

In para 8(c) of the declaration, the plaintiff pleaded that he suffered damages in the sum of US$30,000.00 "for *contumelia*, good name, reputation, publication in the media and emotional trauma suffered as a result of the unlawful prosecution." I agree that the declaration failed to particularise the alleged personal injury with sufficient clarity and provide a breakdown of the various heads of the damages claimed. The context of the alleged injury, including his social status prior to and following the alleged malicious prosecution and the resultant impact, was not pleaded. That crucial information should have been pleaded to enable the defendant to answer the claim. Thus, in *Marijoma Trust* v *Tradcle Enterprises (Pvt) Ltd* HH 243/23 at pp 6-7, the court said:

> "The exception procedure seeks to achieve a speedy resolution of disputes emanating from defects afflicting pleadings. A defendant must not be at pains to decipher the claim that he or she has to answer to. For that reason, the cause of action must be set out in a manner that is intelligible and concise, leaving the defendant in no doubt about the nature of the complaint that he or she has to respond to."

The plaintiff asserted a claim for the amount predicated on an unspecified injury to reputation, details of which remain unknown to both the defendant and the court. Such a pleading fails to set out the cause of action. The defect cannot be cured by evidence at the trial. In *Honikman* v *Alexandria Palace Hotels (Pty) Ltd* 1962 (2) SA 404 (CPD) at 406, a pleading was held to be vague and embarrassing for failure to indicate how the quantum of damages had been calculated. The damages claimed in the sum of US$30,000.00 were not particularised as the plaintiff does not tell the court and the defendant how much he is claiming under the various heads stated, such as for reputation, c*ontumelia* and emotional trauma and how he suffered those injuries. The Supreme Court in *Mushunje* v *Associated Newspapers of Zimbabwe (Pvt) Ltd* SC 62/22 found that the failure to particularise the damages would be fatal to the claim, and no evidence can cure that defect. At p 16, MAKONI JA said:

> "Further, the damages claimed are not particularised. A reading of the declaration shows that even the appellant herself is not sure of her claim. Paragraph 3 talks about injury to her reputation as a professional model. Paragraph 5 refers to damage to 'her self-esteem, personal dignity, and professional integrity and reputation as a model'. In her prayer, she prays for 'damages suffered to her reputation and dignity'. She does not tell us how much she is claiming in respect of the various heads she makes reference to. (*my emphasis*)

As a result, the defendant cannot be expected reasonably to formulate a defence to the purported wrong when its nature, or even the defendant's alleged involvement, remains undisclosed. I agree with Mr *Diza* that the summons was, therefore, excipiable.

There is also no particularity in respect of the claim for future loss of earnings. The particulars are not fully provided for the defendant to appreciate the injury alleged and the quantum thereof in the sum of US$470,000.00. The summons merely asserts a loss of income without motivating the claim. There are no details concerning the plaintiff's employment status when the alleged cause of action arose, what he was earning, or a demonstration of how the sum claimed was derived, as well as how the alleged wrongful conduct impacted his earning capacity. It is trite that if a summons fails to specify the injury or harm suffered by the plaintiff, how it was inflicted, or the reasons the defendant should be held liable, it will be susceptible to exception for failing to disclose a cause of action that requires a response from the defendant. See *Marijoma Trust* (*supra*).

The plaintiff's summons and declaration failed to comply with r 36(9), which states as follows:

> "(9) A plaintiff suing for damages shall set them out in such a manner as will enable the defendant reasonably to assess the quantum of such damages:
>
> Provided that a plaintiff suing for damages for personal injury shall specify his or her date of birth, the nature and extent of the injuries, and the nature, effects and duration of the disability alleged to give rise to such damages, and …" (*my emphasis*)

The plaintiff simply claimed US$470,000.00 and did not plead sufficiently to enable the defendant to appreciate the claim and respond. It would also not be possible to appreciate how the damages were assessed. The exception was accordingly well-founded.

The claim for legal fees also lacked particularity to enable the defendant to reasonably assess their quantum and recoverability. The facts or the allegations detailing how these legal costs were incurred and why the defendant should be held accountable was not pleaded. There was no indication of the alleged attendances resulting in the alleged loss. The defendant would surely be embarrassed and prejudiced in the conduct of its defence.

I concur that the summons does not disclose a cause of action for a claim of malicious prosecution. The plaintiff was required to allege the essential elements required for a claim of this nature to succeed. The requirements for an action for malicious prosecution were restated in *Econet Wireless (Pvt) Ltd & Ors* v *Sanangura* SC 52/13 at p 9, where MALABA DCJ (as he then was) had this to say:

> "In order for one to succeed in an action for malicious prosecution, one must prove four requirements, namely: that the prosecution was instigated by the defendant; it was concluded in his favour; there was no reasonable and probable cause for the prosecution; and that the prosecution was actuated by malice. (See *Mohamed Amin v Jogendra Kummar Bannerjee* 1947 AC 322 (PC) 330, *Minister of Justice & Constitutional Development v Moleko* 2008 (3) All SA 47 (SCA) para 8.)" (*my emphasis*)

At pp 10-11 of the same case, MALABA DCJ (as he then was) further stated that:

> "The phrase "reasonable and probable cause for a prosecution" refers to an honest belief in the guilt of the accused based on a full conviction, founded upon reasonable grounds, of the existence of a state of circumstances which, assuming them to be true, would reasonably lead any ordinarily prudent and cautious man, placed in the position of an accuser, to the conclusion that the person charged was probably guilty of the crime imputed.
> The judgment in *Relyant Trading* (*Pty*) *Limited* v *Shongwe* & Anor 2007 (1) ALL SA 375 (SCA) is instructive in this regard. MALAN AJA said at para 5:
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> > *"Malicious prosecution* consists in the wrongful and intentional assault on the dignity of a person comprehending also his or her good name and privacy. The requirements are that the arrest or prosecution be instigated without reasonable and probable cause and with 'malice' or *animo iniuriarum*. Although the expression 'malice' is used, it means, in the context of

> the *actio iniuriarum, animus iniuriandi*. In *Moaki* v *Reckitt & Colman (Africa) Ltd and Another* WESSELS JA said:
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> > 'Where relief is claimed by this *actio* the plaintiff must allege and prove that the defendant intended to injure (either *dolus directus* or *indirectus*). Save to the extent that it might afford evidence of the defendant's true intention or might possibly be taken into account in fixing the *quantum* of damages, the motive of the defendant is not of any legal relevance.'" (*my emphasis*)

Applying the above legal principles, it is clear that the plaintiff's declaration does not demonstrate that the defendant wrongfully and intentionally harmed him through the said criminal proceedings. The plaintiff did not allege intention either in the form of *dolus directus* or *indirectus*. To that extent, the summons does not disclose a cause of action for malicious prosecution. The exception must accordingly succeed. The exception has merit as the plaintiff's pleading is incurably bad.

Mr *Diza* initially insisted with his prayer that the summons and the particulars of claim must be dismissed. However, after the court queried the appropriateness of such a relief upon upholding an exception, counsel eventually conceded and sought an amended prayer that the exception be upheld with costs. It is trite that where an exception has merit, and the pleading has been incurably bad, the proper relief would be to uphold the exception and not to dismiss the claim altogether. See *Kumbula* v *Pearl Properties* HH 20/16, where MUSAKWA J (as he then was) said:

> "The defendant sought a dismissal of the plaintiff's claim. Mr *Nyamasoka* submitted that the court should uphold the exception, and consequently, this will lead to dismissal of the claim. Mr *Nyamasoka* had, in his earlier submission, prayed for the exception to be upheld so that the defective summons is cured. The ultimate prayer he made was in response to Mr *Mawadze*'s submission that the relief being sought by the defendant was vague. There is really no need to debate on whether the claim should be dismissed or amended. The pleading that the plaintiff calls a summons is incurably defective and what the court only has to do is to uphold the exception." (*my emphasis*)

Further, D. E. Van Loggerenberg, *Jones and Buckle: The Civil Practice of the Magistrates Court in South Africa*, 10th ed, Vol II, (2012), Rule 19-4 – 19-5, also states the correct order the court must give when an exception is upheld as follows:

> "If an exception is successful, the proper course for the court is to uphold it. When an exception is upheld it is the pleading to which exception is taken which is destroyed. The remainder of the edifice does not crumble. The upholding of an exception to a declaration or particulars of claim does not therefore carry with it the dismissal of the summons or of the action. The unsuccessful

> party may then apply for leave to amend his pleadings. It is, in fact, the invariable practice of the courts, where an exception has successfully been taken to an initial pleading that it discloses no cause of action, to order that the pleading be set aside and that the plaintiff be given leave, if so advised, to file an amended pleading within a certain period of time." (*my emphasis*)

See also *Group Five Building Ltd* v *Government of the Republic of South Africa (Minister of Public Works and Land Affairs)* 1993 (2) SA 593 (A) at 602C-D.

The law is, therefore, settled that the correct order to give when an exception has merit is to uphold it and not to dismiss the plaintiff's claim. The plaintiff may still be allowed to seek to amend its defective pleadings if so advised. That course to grant leave to amend within a particular period would only be proper if the plaintiff had sought such a relief. Given the decision in *Nzara & Ors* (*supra*), it would be a gross irregularity for the court to grant relief that is not sought by the parties. In *casu*, there was no prayer for leave to amend the defective pleadings as the exception was considered as unopposed.

The exception has merit and must be upheld. I must state that legal practitioners ought to duly consider the essential requirements of any remedy they seek from the court on behalf of their clients and properly draft the pleadings which meet those requirements. They ought to appreciate the importance of pleadings in litigation. I, therefore, associate myself with the remarks by MAKONI JA in *Mushunje* (*supra*) at p 10, where she said:

> "What comes out from the above remarks made by eminent jurists both within and outside this jurisdiction is that, what is important is that, the pleadings should make clear the general nature of the case. They are meant to mark out the parameters of the case sought to be advanced and define the issues between the litigants. In that regard, it is a basic principle that a pleading should be so framed as to enable the other party to fairly and reasonably know the case he or she is called upon to meet. These requirements, in respect of pleadings, are the very essence of the adversarial system. The prime function of a judge is to hear evidence in terms of the pleadings, to hear arguments and to give his decision accordingly. Further, it is for the court to adjudicate upon the disputes and those disputes alone as raised in the pleadings." (*my emphasis*)

In relation to costs, there is no reason to depart from the general rule that costs must follow the event.

Resultantly, the court entered the judgment aforestated.

DEMBURE J: ……

Diza Attorneys, excipient's legal practitioners
Chasi Maguwudze, Legal Practice, plaintiff's legal practitioners